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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON Defendant.	MOTION TO AMEND OR CLARIFY COURT’S PRE-TRIAL AND TRIAL PUBLICITY ORDER (Dkt. #23) Case No. 251403576 JUDGE TONY F. GRAF
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The State respectfully requests that the Court amend or clarify its September 22, 2025, order (docket no. 23) governing pre-trial and trial publicity.

At the earliest stages of the proceedings the Court expressed its commitment to ensure that Defendant’s rights to due process and an impartial jury would be honored. In pursuit of that commitment, the Court issued its pre-trial and trial publicity order. The publicity order requires the parties to abide by Rule 3.6 of the Utah Rules of Professional Conduct. In expounding on the rule, the order states, “lawyers participating in the investigation or litigation of this case shall inform all witnesses, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.”

During the waiver hearing on September 29, 2025, the State asked the Court to clarify the order, explaining that at this early stage, the prohibitions should apply only to witnesses who are part of the prosecution or defense teams. The State added that it did not know exactly who its witnesses would be at that time, as there were thousands of people present when the shooting took place. In response, the Court stated that the lawyers would be required to follow the order and inform witnesses of its prohibitions as the lawyers identify those witnesses.

But even with this modification, the order leaves open the possibility that it is meant to apply to any potential witness, not just those who are members of the prosecution or defense teams. If that is the case, then, as explained below, the order is not supported by the law, i.e., the court has not conducted the requisite legal analysis and made the findings necessary for a prior restraint on speech. It is also likely void for vagueness. And, to the extent it is meant to apply to witnesses not subpoenaed to testify, it is overbroad.

The State shares the Court's commitment to protect Defendant's rights. From the earliest stages of its involvement and before the Court issued its publicity order, the State made efforts to protect Defendant's rights to a fair trial and an impartial jury, including directing investigative agencies to comply with Utah Rules of Professional Conduct 3.6 and 3.8. The State will continue to make diligent efforts to comply with the ethical rules and direct that investigative agencies do as well. However, if the Court's order applies even to potential lay witnesses who are not members of the prosecution or defense teams, then it restricts the free speech rights of citizens without adequate due process and is too far-reaching and vague for the State to effectively comply with. Where sanctions for non-compliance by a witness could range from mild (e.g., contempt of court for a witness) to severe (e.g., dismissal of the case), the State asks the Court wait for a motion

followed by full briefing and argument before it enters an order which reaches beyond the requirements of rules 3.6 and 3.8 and applies to non-prosecution and defense team witnesses.

1. The order should apply only to prosecution and defense team witnesses.

Lawyers are officers of the Court subject to court orders and the ethical rules. Comment 3 to rule 3.6 states, “this Rule applies *only* to lawyers who are, or who have been, involved in the investigation or litigation of a case and their associates.” *See* Utah R. Prof. Cond. 3.6 comment 3 (emphasis added). Rule 3.8 is similarly limited to the prosecution team. *See id.* R. 3.8(e) (requiring “reasonable care to prevent investigators, law enforcement personnel, employees or other persons *assisting or associated with the prosecutor* ... from making an [improper] extrajudicial statement”) (emphasis added). The Court’s order thus appropriately applies to the attorneys and their teams.

But the prosecution team does not include any individual whom the prosecution might at some point designate as a witness. Beyond the prosecutor’s office, the “prosecution team” extends only to members of law enforcement and other investigating agencies that are “‘acting on the government’s behalf in the case.’” *Carter v. State*, 2019 UT 12, ¶ 48, 439 P.3d 616 (quoting *Kyles v. Whitley*, 514 U.S. 419, 437 (1995)); *see also United States v. Dermen*, 143 F.4th 1148, 1196 (10th Cir. 2025) (defining “‘the prosecution’ for *Brady* purposes” as “the prosecutor’s entire office as well as law enforcement personnel and other *arms of the state* involved in investigative aspects of a particular criminal venture”) (cleaned up) (emphasis added).

There are important distinctions between lay witnesses and witnesses who are part of the prosecution or defense team. Attorneys do not have control or material influence over lay witnesses like they do for non-lay witnesses on the prosecution or defense teams.¹ Lay witnesses are not subject to the Court’s jurisdiction or to the rules of professional conduct; they are not retained by

¹ Attorneys have contractual influence over experts, investigators, and some other witnesses. Attorneys may have the ability to impose or recommend employment sanctions for others.

the parties; they are not officers of the Court; they do not have access to discovery materials; and they do not have any duty to either party. As a result, public statements by lay witnesses do not present the same concerns as statements by the parties or their team members. Given these distinctions, lay witnesses are entitled to greater due process protections than prosecution or defense team members when it comes to orders restricting speech.

To restrict the speech of those who are not members of the prosecution or defense team, the Court must undertake a prior-restraint analysis and make specific findings justifying the restriction. *See e.g., Marceaux v. Lafayette City-Par. Consol. Gov't*, 731 F.3d 488, 492 (5th Cir. 2013) (“Court orders restricting trial participants’ speech are evaluated under the prior restraint doctrine.”) (citing *United States v. Brown*, 218 F.3d 415, 424–25 (5th Cir. 2000)). This analysis “requires that the record establish that the speech creates a potential for prejudice sufficient to justify the restriction.” *Id.* [T]he restriction must [also] be narrowly tailored and employ the least restrictive means of preventing the prejudice.” *Id.* Arguably, the Court cannot undertake this analysis without also allowing the media to be heard. *See KUTV, Inc. v. Conder*, 668 P.2d 513, 524 (Utah 1983) (“[A] prior restraint entered without notice and hearing involving the media would always be invalid.”). The Court has not undertaken this demanding analysis, supported its order with the required detailed findings, or allowed the media to be heard on this issue.

Citizens have a right to free speech. At times, the right to free speech must yield to the right to an impartial jury. *See Nebraska Press Ass’n v. Stuart*, 427 U.S. 539, 569-70 (1976); *KUTV, Inc. v. Conder*, 668 P.2d 513, 518 (Utah 1983). While trial courts may properly restrict the speech of witnesses under certain circumstances, *Sheppard v. Maxwell*, 384 U.S. 333, 361-63, (1966), doing so requires due process and detailed findings demonstrating why the restriction is necessary. *See Marceaux*, 731 F.3d at 492; *Conder*, 668 P.2d at 524 (requiring notice to media). “To justify a

prior restraint on free speech, there must first be a factual showing of necessity.” *Spencer v. State*, 712 S.W.3d 296, 305 (Ark. 2025). The nature of that factual showing necessarily depends on the circumstances of the case and the identity of the speakers to be restrained. *See id.* at 305-07.

As the Arkansas Supreme Court recently explained, there are “three categories of persons potentially subject to gag orders: (1) attorneys of record; (2) non-attorney trial participants (such as criminal defendants, witnesses, and court staff); and (3) the public at large (i.e., those who are not participating in the trial).” *Spencer*, 712 S.W.3d at 306. Attorney speech “is subject to a higher degree of regulation than speech by others.” *Id.* For non-attorney trial participants, including witnesses, “free-speech protections ... are greater than those of attorneys of record, but less than those of the public at large.” *Id.* “[T]he speech of non-attorney trial participants may be restrained only to the extent that it poses a serious and imminent threat of material prejudice to an ongoing criminal proceeding.” *Id.* The free-speech rights of non-witness members of the public are afforded the broadest protection. *Id.* at 307. “In fact, it is difficult to foresee any circumstance in which a prior restraint on the speech of a member of the public, which would include a public official, could be constitutional.” *Id.*

The *Spencer* court ultimately held that, before a court can enter an order restricting speech, the court must make specific findings that (1) the prospectively limited speech would pose a threat of prejudicing the proceeding; (2) no less restrictive measures (like summoning a larger jury panel or expanded voir dire) would be effective; (3) the prohibitions would be likely to prevent prejudice; and (4) the prohibitions are narrowly tailored. *Id.* at 307.

This analysis is consistent with *Nebraska Press Ass’n*, which prescribed a three-part test for restricting speech by the media. *See* 427 U.S. at 562. Before imposing a prior restraint on the press, a court must consider (1) the extent to which the statements threaten the fairness of trial; (2)

the likely effectiveness of alternative measures; and (3) how effectively the restraint would prevent the threatened danger. *See id.*; *see also KUTV v. Wilkinson*, 686 P.2d 456, 461 (Utah 1984). The analysis is difficult given that “the impact of [pretrial] publicity on prospective jurors [is] of necessity speculative,” because it deals “with factors unknown and unknowable.” *Nebraska Press Ass’n*, 427 U.S. at 563.

In addition to the lack of appropriate legal analysis and findings, another reason to forbear from entering an order that restricts the free-speech rights of non-prosecution or defense team witnesses is that the appropriate standard to apply is an unsettled question. Courts disagree on the standard for evaluating when a court may impose limitations on statements by non-attorney trial participants under the first prong of *Nebraska Press*:

The Fourth and Tenth Circuits have held that a trial court may restrict extrajudicial comments by trial participants, including ... witnesses, based on a determination that those comments present a “reasonable likelihood” of prejudicing a fair trial. The Sixth, Seventh, and Ninth Circuits have applied more stringent tests, requiring either a showing of “clear and present danger” or “serious and imminent threat” of prejudicing a fair trial.

U.S. v. Brown, 218 F.3d 415, 427 (5th Cir. 2000); *see also Spencer*, 712 S.W.3d at 305-06 (describing the various approaches). Utah appellate courts do not appear to have addressed prior restraints on witnesses. As result, the standard that this Court should apply requires further briefing if its order is meant to extend beyond witnesses who are not part of the prosecution or defense teams.

Because this Court has not conducted a prior restraint analysis relating to lay witnesses, the State assumes that the order applies only to witnesses who are members of the prosecution and defense teams. The State seeks clarification to confirm its understanding.

If the Court’s intent is that the order applies to *all* witnesses, including lay witnesses who are not part of the prosecution or defense team, then the order is not supported by the requisite

analysis and findings, nor has the media been allowed to be heard. Accordingly, the Court should clarify that the order applies only to the attorneys and their teams.

2. The order is too vague to apply to lay witnesses.

If, after conducting the proper analysis, the Court finds that an order restraining the speech of lay witnesses is necessary, then the Court should clarify how the parties can comply with the order. Absent that direction, the order is likely void for vagueness. *See Spencer*, 712 S.W.3d at 307. For example, the trial court's order in *Spencer* did not specify exactly which members of the defendant's family it applied to, what certain provisions really meant, or how it applied to statements witnesses made on social media. *Id.*

Similar concerns exist here. As previously noted, there are more than 3,000 witnesses to the shooting. The order does not specify who it applies to – all who witnessed the shooting, may-call witnesses, or only will-call witnesses. The decision of which witnesses to call at trial will not be made for many months, and this puts the State (and Defendant) at risk of violating the order in its current form. The order is also vague as to when the State must notify its witnesses. The *Spencer* court attempted to resolve these concerns by requiring the court order to be delivered with trial subpoenas. *See* 712 S.W.3d at 302.

In addition, the order here does not specify what speech is restricted. For example, are witnesses restricted from making social media posts, or only from interviewing with traditional media outlets? If they have made social media posts, are they required to delete them? In this case, witnesses appear to have posted videos of the event on social media immediately after it happened. Are they required to delete them? Is the State required to attempt to identify all social media posts by witnesses and instruct witnesses to delete them?

Finally, the scope of the restriction in the current order does not give adequate direction to lay witnesses who are not subject to or familiar with the relevant rules of professional conduct.

3. The order is overbroad.

To the extent the order is meant to extend to those who may have witnessed events associated with the case but are not subpoenaed as witnesses at trial, the preliminary hearing, or an evidentiary hearing—i.e., “trial participants”—it is also unconstitutionally overbroad. The United States Supreme Court has made clear that “[a]n order issued in the area of First Amendment rights must be precise and narrowly tailored to achieve the pin-pointed objective of the needs of the case.” *Tory v. Cochran*, 544 U.S. 734, 738 (2004) (cleaned up) (quoting portions of *Carroll v. President and Comm'rs of Princess Anne*, 393 U.S. 175, 183–184 (1968)); *accord Pittsburgh Press Co. v. Pittsburgh Comm'n on Hum. Rels.*, 413 U.S. 376, 390 (1973) (holding that prior restraints may “sweep [] no more broadly than necessary”).

The restriction of the free speech rights of those who may hypothetically be subpoenaed as witnesses far exceeds the needs of the case, i.e., to ensure that the testimony of trial participants is limited to information that is relevant, reliable, and otherwise admissible. Extending the order to non-participants in the trial proceedings simply sweeps too broadly. Indeed, these non-participants in the trial proceedings are members of the public “whose speech is afforded the most protection in the context of gag orders.” *Spencer*, 712 S.W.3d at 306-07. As observed by the Arkansas Supreme Court, “it is difficult to foresee any circumstance in which a prior restraint on the speech of a member of the public ... could be constitutional.” *Id.* at 307.

CONCLUSION

The State asks the Court to limit its pre-trial and trial publicity order to members and witnesses of the prosecution or defense teams. If either party believes additional court orders are

necessary, that party should file a motion, and the Court should set a hearing to address it. The Court should issue a prior-restraint order that applies to lay witnesses only after making the requisite findings. If the Court issues a prior-restraint order applicable to lay witnesses, the State asks that the order only apply to those lay witnesses who are subpoenaed to trial, preliminary hearing, or other evidentiary hearing, and the order include when it applies, how the parties can satisfy the order, and which statements are restricted.

Dated November 6, 2025.

UTAH COUNTY ATTORNEY'S OFFICE

s/ Christopher D. Ballard

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CERTIFICATE OF SERVICE

I certify that on November 6, 2025, I filed the foregoing MOTION TO AMEND OR CLARIFY COURT'S PRE-TRIAL AND TRIAL PUBLICITY ORDER (Dkt. #23) through the court's electronic filing system, which served a copy to all counsel of record.

s/ Christopher D. Ballard

Christopher D. Ballard